



Peru

Detailed Assessment Results

I. Legal Frameworks 3.72 / 5

II. Mining policies 3.40 / 5

III. Investigation and enforcement 4.39 / 5

Total score 11.51 / 15.00



Each coloured segment represents one dimension. Grey shows remaining headroom to 15.

About this scorecard

The **Amazon Mining Policy Scoreboard**, led by Amazon Conservation Association, evaluates national gold mining governance across Amazon countries. Each country is assessed across three dimensions — **Legal Frameworks**, **Mining Policies**, and **Investigation & Enforcement** — each worth up to 5 points, for a maximum total of **15 points**. Within each dimension, five categories (each normalised 0–1) are evaluated through multiple criteria.

Peru received a total score of **11.51 out of 15.00**, ranking **2nd out of 8 Amazon countries** assessed. The pages that follow present the full set of criteria, justifications, and sources organised by dimension and category.

■ Legal Frameworks

■ Mining policies

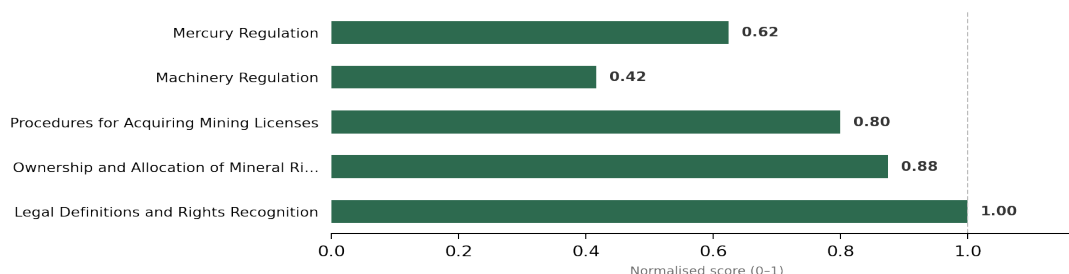
■ Investigation and enforcement

This assessment was produced by Amazon Conservation as part of the [Amazon Mining Policy Scoreboard](#), a component of [Amazon Mining Watch](#). The assessment for each country was conducted with support from, respectively: Conservación Amazonica – ACEAA (Bolivia), Instituto Centro de Vida (Brazil), Fundación para la Conservación y el Desarrollo Sostenible (Colombia), Fundación Ecociencia (Ecuador), Amazon Conservation Team (Guyana and Suriname), Conservación Amazonica – ACCA (Peru), and SOS Orinoco (Venezuela).

I. Legal Frameworks

3.72 / 5.00

Category scores



A. Legal Definitions and Rights Recognition

Score: 1.00 / 1.00

Does national legislation clearly define the legal conditions under which gold mining is permitted, and distinguish them from activities considered illegal?

1.0

Criterion 1

Justification

Peruvian legislation, through Legislative Decree No. 1100, establishes a clear framework for the interdiction of illegal mining and defines the conditions under which gold mining is illegal. This law explicitly prohibits the use of dredges and other similar devices in all waterways, rivers, lakes, lagoons, oxbow lakes, bodies of water, wetlands, and palm swamps, as well as the use of mercury and cyanide in illegal mining activities. Furthermore, Law No. 27651, the Law for the Formalization and Promotion of Small-Scale and Artisanal Mining, establishes the conditions for legal small-scale mining, distinguishing it from illegal mining. The General Mining Law – Consolidated Text of Supreme Decree No. 014-92-EM – also defines mining activity, who may engage in it, and under what conditions. It regulates mining concessions, rights, obligations, authorizations, and oversight. Finally, Legislative Decree No. 1105 (2012) – Mining Formalization Process – establishes an exceptional process for the formalization of informal small-scale and artisanal gold mining. It outlines the conditions for registration, production declaration, and compliance with environmental and tax obligations. Therefore, Peruvian legislation clearly distinguishes between legal and illegal mining.

Sources

Legislative Decree No. 1100 (Legislative Decree regulating the prohibition of illegal mining throughout the Republic and establishing complementary measures)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1049650>

Law No. 27651 (Law for the Formalization and Promotion of Small-Scale and Artisanal Mining)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H820249>

Supreme Decree No. 014-92-EM (Consolidated Text of the General Mining Law)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H754834>

Legislative Decree No. 1105 (Legislative Decree which establishes provisions for the formalization process of small-scale and artisanal mining activities)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1053469>

Does national legislation provide a clear legal definition of artisanal and small-scale mining (ASM), distinct from large-scale or industrial mining?

1.0

Criterion 2

Justification

Article 91 of the Consolidated Text of the General Mining Law (Supreme Decree 014-92-EM) defines artisanal and small-scale mining producers based on their installed production and/or processing capacity. The law establishes technical parameters expressed in metric tons per day, clearly differentiating these categories from medium and large-scale mining, which exceed these values.

Sources

Law No. 27651 (Law for the Formalization and Promotion of Small-Scale and Artisanal Mining)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H820249>

Supreme Decree No. 014-92-EM (Consolidated Text of the General Mining Law)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H754834>

Does the legal framework set distinct conditions or restrictions for mining activities in Indigenous territories, protected areas, mining exclusion zones and community lands, including provisions related to consent, well-informed prior consultation, or land tenure?

1.0

Criterion 3

Justification

Peru has a robust legal framework for the protection of the rights of indigenous peoples and protected natural areas. Law No. 29785, the Law on the Right to Prior Consultation of Indigenous or Native Peoples, recognized in ILO Convention 169, establishes the obligation to conduct prior, free, and informed consultation before authorizing mining projects in indigenous territories. Legislative Decree No. 1100 prohibits mining in bodies of water and buffer zones. Furthermore, the Political Constitution of Peru (Art. 89) recognizes the ownership of peasant and native communities over their lands, which are inalienable, imprescriptible, and unseizable. Finally, Article 115.2 of the Regulations of the Law of Protected Natural Areas (Supreme Decree No. 038-2001-AG) establishes that: "The exploitation of non-renewable natural resources is incompatible with Protected Natural Areas of indirect use; except when there are acquired rights established by the legislation of the matter prior to the creation of the Area."

Sources

Law No. 29785 (Law on the Right to Prior Consultation of Indigenous or Native Peoples):

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1039114>

Law No. 26834

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H775354>

Legislative Decree No. 1100 (Legislative Decree that regulates the prohibition of illegal mining throughout the Republic and establishes complementary measures)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1049650>

Political Constitution of Peru

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H682678>

Supreme Decree No. 038-2001-AG (Regulations of the Law on Protected Natural Areas)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H809344>

B. Ownership and Allocation of Mineral Rights

Score: 0.88 / 1.00

Does the law allocate ownership rights over minerals, including gold?

1.0

Criterion 4

Justification

Article 66 of the Political Constitution of Peru establishes that natural resources, both renewable and non-renewable, are the patrimony of the Nation. The State is sovereign in their exploitation. The General Mining Law (Supreme Decree No. 014-92-EM) establishes that the State grants mining concessions that confer upon their holder the right to explore and exploit the granted mineral resources. Therefore, while the State owns the minerals, the law assigns exploitation rights to the concession holders.

Sources

Political Constitution of Peru:

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H682678>

Supreme Decree 014-92-EM (Consolidated Text of the General Mining Law):

https://www.osinergmin.gob.pe/seccion/centro_documental/Institucional/Estudios

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H754834>

Are there transparent and publicly accessible registries of mining titles, licenses, or concessions for ASM (mining cadastres)?**1.0**

Criterion 5

Justification

Yes, the Geological, Mining and Metallurgical Institute (INGEMMET) of Peru manages the national mining registry, which is publicly accessible through its website. The GEOCATMIN and E-Mining Registry tools allow anyone to consult information about mining concessions, including their location, owner, and status. The Comprehensive Registry of Mining Formalization (REINFO) is also publicly accessible and allows users to check the status of miners undergoing the formalization process.

Sources

GEOCATMIN: <https://geocatmin.ingemmet.gob.pe/geocatmin/>

E-Mining Cadastre: <https://portal.ingemmet.gob.pe/web/guest/e-catastro-minero>

REINFO: <https://www.gob.pe/867-buscar-en-el-registro-integral-de-formalizacion-minera-reinfo>

Is there an official and up-to-date mining registry that includes information allowing authorities to prevent overlapping concessions with existing rights, such as other titles, protected areas, or indigenous lands?**0.5**

Criterion 6

Justification

While INGGEMMET's mining registry is a powerful tool that helps prevent overlapping mining concessions, the existence of socio-environmental conflicts and overlapping rights in practice suggests that the system is not infallible. Overlap of concessions with protected natural areas and indigenous territories has been a recurring problem in Peru. Although efforts have been made to improve coordination among different government entities, overlapping rights remain a challenge.

Sources

GEOCATMIN: <https://geocatmin.ingemmet.gob.pe/geocatmin/>

Is there a formalization process in place for ASM workers operating without a formal permit, license and/or concession?

1.0

Criterion 7

Justification

Yes. Peru has a comprehensive mining formalization process aimed at artisanal and small-scale miners (ASM) who operate without a formal title, license, or concession. This process was created by Legislative Decree No. 1293 (2016), which established the Comprehensive Mining Formalization Registry (REINFO). Registration in this registry allows informal miners to continue their activities temporarily while they meet the technical, environmental, labor, and tax requirements for full formalization.

The formalization process is also regulated by complementary regulations, such as Supreme Decree No. 018-2017-EM (which approves the regulations of Legislative Decree 1293) and its amendments, which establish procedures for registration, verification, and exclusion. It also includes the involvement of regional governments, which are responsible for evaluating and approving Environmental Management Instruments for Formalization (IGAFOM).

Sources

REINFO: <https://www.gob.pe/867-buscar-en-el-registro-integral-de-formalizacion-minera-reinfo>

Legislative Decree No. 1293 (Legislative Decree declaring the formalization of small-scale and artisanal mining activities to be of national interest)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1170895>

Supreme Decree No. 018-2017-EM (Establishing supplementary provisions for simplifying requirements and obtaining economic incentives within the framework of the Comprehensive Mining Formalization Process)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1181740>

C. Procedures for Acquiring Mining Licenses

Score: 0.80 / 1.00

Are there clear procedures for acquiring rights on ASM for gold?

1.0

Criterion 8

Justification

Yes, there are clear procedures for acquiring mining rights for artisanal and small-scale mining (ASM) in Peru. These procedures are established in the General Mining Law and its regulations, and are managed by INGEMMET. The formalization process through REINFO also establishes a clear path for informal miners to obtain their rights. All mining rights, including those for ASM, are acquired through a mining concession granted by INGEMMET or by the Regional Governments with delegated authority (Articles 9 and 10 of the Consolidated Text of the General Mining Law, Supreme Decree No. 014-92-EM).

Sources

General Mining Law: https://www.osinergmin.gob.pe/seccion/centro_documental/Institucional/Estudios_Economicos/Libros/Libro_Panorama_de_la_Mineria_en_el_Peru.pdf

REINFO: <https://www.gob.pe/867-buscar-en-el-registro-integral-de-formalizacion-minera-reinfo>

D.S. 014-92-EM (Consolidated Text of the General Mining Law):

https://www.osinergmin.gob.pe/seccion/centro_documental/Institucional/Estudios

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H754834>

Legislative Decree No. 1293 (Legislative Decree declaring the formalization of small-scale and artisanal mining activities to be of national interest):

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1170895>

Is there a legal framework that requires the buyer of gold to verify its legal origin?

1.0

Criterion 9

Justification

In Peru, both the General Mining Law and special regulations for combating illegal mining require gold buyers to verify its legal origin before purchasing it. The General Mining Law (Legislative Decree 708 of 1991), in Article 4, expressly states that “the buyer is obligated to verify the origin of the mineral substances,” and that purchasing from an unauthorized person makes the buyer responsible. This principle was reinforced by recent legislation: Legislative Decree No. 1107 of 2012, enacted to combat illegal mining, establishes in Article 11 that “every purchaser of mining products [...] must verify their origin, requesting the corresponding documents” and confirming their authenticity in official information systems.

Sources

General Mining Law: https://www.osinergmin.gob.pe/seccion/centro_documental/Institucional/Estudios_Economicos/Libros/Libro_Panorama_de_la_Mineria_en_el_Peru.pdf

Legislative Decree No. 1107 of 2012

Are specific environmental licensing procedures established for ASM, including simplified or tailored requirements?

1.0

Criterion 10

Justification

Yes, Peru has established specific and simplified environmental licensing procedures for small-scale mining (ASM). Legislative Decree No. 1105 created the Corrective Environmental Management Instrument (IGAC), applicable exclusively to ASM undergoing formalization. Legislative Decree No. 1293 (2016) and complementary regulations establish that miners registered in the REINFO (National Registry of Informal Mining Operators) must submit an IGAC or an Environmental Management Instrument for Formalization (IGAFOM). Supreme Decree No. 004-2012-MINAM approved the Complementary Provisions that regulate the Corrective Environmental Management Instrument - IGAC. The Environmental Management Instrument for the Formalization of Small-Scale and Artisanal Mining Activities (IGAFOM) is an example of an environmental requirement adapted to the reality of ASM. The IGAFOM seeks to facilitate compliance with environmental regulations by small-scale miners.

Sources

Ministry of the Environment (MINAM): <https://www.gob.pe/minam>

Legislative Decree No. 1105 (Legislative Decree establishing provisions for the formalization process of small-scale and artisanal mining activities)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1053469>

Legislative Decree No. 1336 (Legislative Decree establishing provisions for the comprehensive mining formalization process)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1171584>

Supreme Decree No. 038-2017-EM (Establishing Regulatory Provisions for the Environmental Management Instrument for the Formalization of Small-Scale and Artisanal Mining Activities) (Artisanal)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1192891>

Is there a national, regional, or state government entity that oversees compliance with the implementation of artisanal and small-scale mining (ASM) operations' commitments in accordance with mining environmental licenses?

1.0

Criterion 11

Justification

In Peru, the verification of compliance with environmental licenses by artisanal and small-scale miners (ASM) is the responsibility of different entities depending on the phase of mining activity and the relevant level of government.

The National Environmental Enforcement Authority (OEFA), an agency attached to the Ministry of the Environment (MINAM), is the institution in charge of supervising and penalizing compliance with environmental obligations in the mining sector. OEFA acts as the governing body of the National System for Environmental Assessment and Enforcement (SINEFA) and coordinates with regional entities to ensure the proper application of environmental regulations.

In the case of artisanal and small-scale mining, direct responsibility lies with the regional governments, which are responsible for granting and overseeing ASM environmental authorizations, permits, and licenses in accordance with Legislative Decree No. 1105 and Supreme Decree No. 018-2015-EM, which regulate the mining formalization process. These regional entities must verify compliance with the commitments made in the Environmental Management Instruments for the Formalization of Small-Scale and Artisanal Mining Activities (IGAFOM), which are mandatory for legal operation.

The General Directorate of Mining Formalization (DGFM) of the Ministry of Energy and Mines (MINEM) oversees the formalization process and coordinates with regional governments and the OEFA (Environmental Assessment and Enforcement Agency) to ensure that miners registered in the Comprehensive Mining Formalization Registry (REINFO) comply with environmental and technical obligations.

Sources

Law No. 28611 (General Environmental Law);

Legislative Decree No. 1105 (Mining Formalization Process);

Supreme Decree No. 018-2015-EM (Regulations for Comprehensive Mining Formalization);

Supreme Decree No. 013-2017-MINAM (Environmental Supervision Regulations of the OEFA);

Are mining concessions or licenses granted for a fixed period with mandatory reassessment before extension? *0.5 may be given in cases where the reassessment is mandatory, even when there is no fixed period for the mining concession

0.0

Criterion 12

Justification

The Law for the Formalization and Promotion of Small-Scale and Artisanal Mining does not establish a specific period for granting mining rights to artisanal and small-scale mining (ASM). The validity of mining rights in Peru for ASM is maintained through the annual payment of the validity fee and the renewal of the concession, with varying terms and amounts. Furthermore, validity is linked to compliance with the minimum annual production (Articles 6 and 7), and laws and regulations such as the ASM Law aim to improve the conditions and access to ownership of these rights. There is no automatic renewal; the right expires if the validity fee is not paid or if operations do not commence.

Sources

Law on Formalization and Promotion of Small-Scale and Artisanal Mining

D. Machinery Regulation

Score: 0.42 / 1.00

Is the use of machinery in ASM subject to regulation and licensing?

1.0

Criterion 13

Justification

Yes, the use of machinery in artisanal and small-scale mining (ASM) is subject to regulation. The General Mining Law – Consolidated Text of Supreme Decree No. 014-92-EM – establishes safety and operational obligations for concession holders, and the mining formalization process requires operators to register the machinery they use. An individual license is not required for each machine, but its use must comply with current safety and operational standards.

Sources

DS 040-2014-EM (Environmental Protection and Management Regulations for Mining Activities (Exploitation, Processing, General Labor, Transportation, and Storage)
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1115050>

Are environmental impact assessments (EIAs) required for mechanized ASM operations?**1.0**

Criterion 14

Justification

Yes, environmental impact assessments are required for mechanized artisanal and small-scale mining (ASM) operations. As mentioned previously, all mining operations, regardless of scale, must have an approved environmental management instrument before commencing activities. For ASM, adapted instruments such as the IGAFOM are used. However, mechanized ASM operations are not required to have an Environmental Impact Assessment (EIA) as is the case for medium or large-scale mining.

Sources

Legislative Decree No. 1105 (Legislative Decree establishing provisions for the formalization process of small-scale and artisanal mining activities)
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1053469>
Legislative Decree No. 1293 (Legislative Decree declaring the formalization of small-scale and artisanal mining activities a matter of national interest)
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1170895>

Are there governmental controls on the import, sale, or leasing of mining machinery?**0.5**

Criterion 15

Justification

While regulations exist regarding the import and sale of machinery in general, there is no specific and rigorous control over machinery used in mining, especially in artisanal and small-scale mining (ASM). The ease with which heavy machinery reaches illegal mining areas suggests that controls are insufficient. Thus, the General Mining Law – Consolidated Text of Supreme Decree No. 014-92-EM – establishes that concession holders must comply with safety and operational standards, but does not require individual licenses for each machine.

Sources

National Superintendency of Customs and Tax Administration (SUNAT): <https://www.sunat.gob.pe/>
Supreme Decree No. 014-92-EM (General Mining Law)
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H754834>

Is there a national or subnational registry for heavy machinery used in mining?**0.0**

Criterion 16

Justification

There is no centralized public registry of heavy machinery used in mining activities. While miners undergoing the formalization process are required to declare their machinery, this information is not consolidated in an easily accessible public registry. The lack of such a registry hinders the control and oversight of machinery used in illegal mining. However, three bills addressing this issue are currently under consideration.

Sources

Ministry of Energy and Mines (MINEM): <https://www.gob.pe/minem>

https://wb2server.congreso.gob.pe/spley-portal-service/archivo/MTUwODAx/pdf?utm_source=chatgpt.com

Are there transparent and publicly accessible registries or databases of licenses or permits granted for the use of machinery in ASM operations?

0.0

Criterion 17

Justification

There are no specific public records regarding licenses or permits for the use of machinery in artisanal and small-scale mining (ASM). Information on the machinery used by formal miners is contained in their formalization files, but it is not easily accessible to the general public.

Sources

Ministry of Energy and Mines (MINEM): <https://www.gob.pe/minem>

Are operators required to equip heavy machinery with GPS or other tracking devices for monitoring purposes?

0.0

Criterion 18

Justification

There is no widespread requirement for heavy machinery used in artisanal and small-scale mining (ASM) to be equipped with GPS or other tracking devices. While this measure has been proposed as a way to combat illegal mining, it has not yet been implemented as a mandatory requirement.

E. Mercury Regulation

Score: 0.62 / 1.00

Is mercury import, sale, and use regulated under national law?

1.0

Criterion 19

Justification

Yes, the import, sale, and use of mercury are regulated in Peru. Legislative Decree No. 1100 expressly prohibits the use of mercury in illegal mining. Furthermore, Supreme Decree No. 061-2015-RE approves the ratification of the Minamata Convention on Mercury, committing the country to reduce and control this metal. Additionally, Supreme Decree No. 073-2014-EF includes mercury in the list of controlled goods, establishing control measures for its sale and transport. Finally, Superintendency Resolution No. 207-2014/SUNAT creates the Registry for the Control of Controlled Goods (RCBF), which requires operators to register and obtain authorization to legally import, export, transport, or sell mercury.

Sources

Legislative Decree No. 1100 (Legislative Decree regulating the prohibition of illegal mining throughout the Republic and establishing complementary measures)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1049650>

Supreme Decree No. 061-2015-RE (Minamata Convention on Mercury)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1184746>

Supreme Decree No. 073-2014-EF: (Issuing regulations for the application of the provisions of the First Final Complementary Provision of Legislative Decree No. 1103, which establishes control and oversight measures for the distribution, transport, and marketing of chemical inputs that may be used in mining) (illegal)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1098785>

Superintendency Resolution No. 207-2014/SUNAT: (Issues supplementary regulations for the application of the provisions of the First Final Supplementary Provision of Legislative Decree No. 1103, which establishes control and oversight measures for the distribution, transport, and sale of chemical inputs that may be used in illegal mining)

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1105187>

Are there specific restrictions or bans on mercury use in ASM?

1.0

Criterion 20

Justification

Superintendency Resolution No. 207-2014/SUNAT and Supreme Decree No. 073-2014-EF establish controls and restrictions on the import and sale of mercury in the country, although there is no regulation that expressly prohibits its use in artisanal and small-scale mining (ASM). Furthermore, Article 7 of the Minamata Convention on Mercury, ratified by Peru, stipulates that States must adopt measures to reduce and, where feasible, eliminate the use of mercury in artisanal and small-scale mining, and develop a National Action Plan when these activities are more than negligible.

Sources

Superintendency Resolution No. 207-2014/SUNAT: (Issues supplementary regulations for the application of the provisions of the First Final Supplementary Provision of Legislative Decree No. 1103, which establishes control and oversight measures for the distribution, transportation, and sale of chemical inputs that may be used in illegal mining)

Supreme Decree No. 073-2014-EF (Issues regulatory provisions for the application of the provisions of the First Final Supplementary Provision of Legislative Decree No. 1103, which establishes control and oversight measures for the distribution, transportation, and sale of chemical inputs that may be used in illegal mining):

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1098785>

Ministerial Resolution No. 020-2024-MINAM (Orders the publication From the draft "Supreme Decree approving the National Action Plan for Artisanal and Small-Scale Gold Mining in Peru, within the framework of the implementation of the Minamata Convention on Mercury":

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1368835>

Is there a system for tracking the origin, distribution, and final use of mercury?

0.5

Criterion 21

Justification

In Peru, there are control mechanisms for mercury, although they are limited. Superintendency Resolution No. 207-2014/SUNAT created a special registry for the entry and exit of controlled goods (including mercury), requiring importers and distributors to declare transactions in the SUNAT system. Additionally, Supreme Decree No. 073-2014-EF regulates customs procedures for mercury imports, establishing documentary control requirements and prior authorization. However, these mechanisms focus on trade and imports, and there is still no comprehensive, digital, and public system that allows for continuous tracking of mercury distribution and end use within the country, especially in artisanal and small-scale mining (ASM).

Sources

National Action Plan on Mercury: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1368835>

Superintendency Resolution No. 207-2014/SUNAT: (Issues supplementary regulations for the application of the

provisions of the First Final Supplementary Provision of Legislative Decree No. 1103, which establishes control and oversight measures for the distribution, transport, and sale of chemical inputs that may be used in illegal mining)
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1105187>

Supreme Decree No. 073-2014-EF (Issues regulatory provisions for the application of the provisions of the First Final Supplementary Provision of Legislative Decree No. 1103, which establishes control and oversight measures for the Distribution, transport, and sale of chemical inputs that may be used in illegal mining:
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1098785>

Are there procedures in place for the seizure, transport, and final disposal of confiscated mercury, especially following operations against illegal gold mining?

0.0

Criterion 22

Justification

While procedures exist for the seizure of mercury as part of the fight against illegal mining, the procedures for its transport and final disposal are neither clearly established nor publicly known. The safe management of confiscated mercury is a significant challenge for Peruvian authorities.

Sources

Legislative Resolution No. 30352 (Legislative Resolution approving the Minamata Convention on Mercury):
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1139046>

Law No. 28256 (Law regulating the Land Transport of Hazardous Materials and Waste):
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H868479>

Legislative Decree No. 1100 (Legislative Decree regulating the prohibition of illegal mining throughout the Republic and establishing complementary measures):
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1049650>

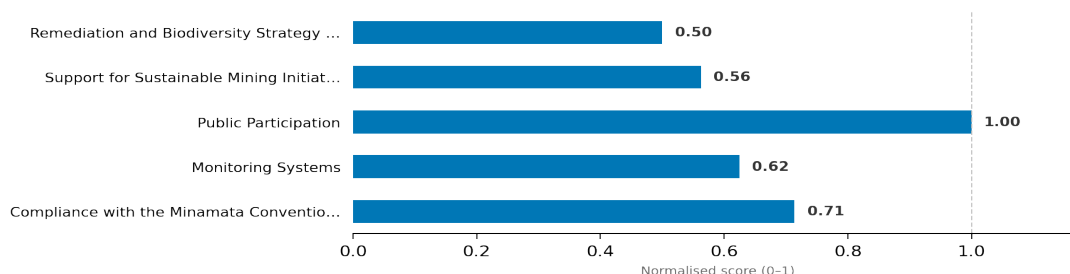
Legislative Decree No. Supreme Decree No. 1278 (Legislative Decree approving the Comprehensive Solid Waste Management Law):
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1170361>

Supreme Decree No. 04-2017 (Approving the Regulations of Legislative Decree No. 1278, Legislative Decree approving the Comprehensive Solid Waste Management Law):
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1196437>

II. Mining policies

3.40 / 5.00

Category scores



F. Compliance with the Minamata Convention on Mercury

Score: 0.71 / 1.00

Is the country a signatory or Party to the Minamata Convention on Mercury?

1.0

Criterion 23

Justification

Yes, Peru is a signatory and Party to the Minamata Convention on Mercury. The country signed the convention on October 10, 2013.

Sources

Minamata Convention on Mercury: <https://www.mercuryconvention.org/en/countries/peru>

Ministerial Resolution No. 020-2024-MINAM (Ordering the publication of the draft "Supreme Decree approving the National Action Plan for Artisanal and Small-Scale Gold Mining in Peru, within the framework of the implementation of the Minamata Convention on Mercury")

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1368835>

Supreme Decree No. 061-2015-RE (Minamata Convention on Mercury):

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1184746>

Has the country ratified the Minamata Convention?

1.0

Criterion 24

Justification

Yes, Peru ratified the Minamata Convention on January 21, 2016.

Sources

Minamata Convention on Mercury: <https://minamataconvention.org/en/documents/national-implementation-plan-peru>

Supreme Decree No. 061-2015-RE (Minamata Convention on Mercury):

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1184746>

Has the country submitted an initial assessment report as part of its participation in the Convention?

1.0

Criterion 25

Justification

Yes, Peru submitted its Minamata Initial Assessment (MIA) in 2020. The MIA report provides an assessment of the mercury situation in the country and lays the groundwork for the development of the National Implementation Plan for the Minamata Convention.

Sources

Minamata Convention on Mercury: <https://minamataconvention.org/en/documents/national-implementation-plan-peru>
Initial Assessment of the Minamata Convention:

https://minamataconvention.org/sites/default/files/documents/minamata_initial_assessment/Peru-MIA-2020-ES.pdf

<https://minamataconvention.org/es/parties/minamata-initial-assessments>

Has the country developed and submitted a National Action Plan (NAP) on mercury in accordance with the Convention?

1.0

Criterion 26

Justification

Yes, Peru developed and submitted its Multisectoral Action Plan for the implementation of the Minamata Convention on Mercury in 2016, through Supreme Decree No. 010-2016-MINAM, with a deadline of December 2017. Subsequently, it was updated to the National Implementation Plan of the Minamata Convention on Mercury, through Supreme Decree No. No. 004-2019-MINAM, in 2019. In addition, the draft Supreme Decree approving the National Action Plan for Artisanal and Small-Scale Gold Mining in Peru, within the framework of the implementation of the Minamata Convention on Mercury, was presented through Ministerial Resolution No. 020-2024-MINAM, in 2024. The National Implementation Plan of the Minamata Convention on Mercury establishes the strategies and actions that the country will implement to reduce and, as far as possible, eliminate the use of mercury in artisanal and small-scale mining.

Sources

National Action Plan on Mercury: <https://www.gob.pe/institucion/minam/normas-legales/254900-014-2017-em>

National Implementation Plan for the Minamata Convention on Mercury:

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1233761>

Publication of the draft "Supreme Decree approving the National Action Plan for Artisanal and Small-Scale Gold Mining in Peru, within the framework of the implementation of the Minamata Convention on Mercury":

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1368835>

Does the NAP explicitly mention forests or forest ecosystems in the context of mercury reduction strategies?

0.0

Criterion 27

Justification

No, Peru's National Implementation Plan for the Minamata Convention on Mercury does not explicitly mention actions to protect forests and forest ecosystems from the impacts of gold mining and mercury use.

Sources

National Action Plan on Mercury: <https://minamataconvention.org/en/documents/national-implementation-plan-peru>

National Implementation Plan for the Minamata Convention on Mercury:

https://minamataconvention.org/sites/default/files/documents/national_implementation_plan/Peru_NIP_ES.pdf

Does the NAP specifically refer to the Amazon region in its analysis, objectives, or proposed actions?

1.0

Criterion 28

Justification

Yes, Peru's National Action Plan (NAP) specifically addresses the Amazon region. The plan acknowledges that the Amazon is one of the areas most affected by illegal gold mining and the use of mercury, and it establishes specific actions to address this problem in the region.

Sources

National Action Plan on Mercury: <https://minamataconvention.org/en/documents/national-implementation-plan-peru>

Does the NAP take into account intersectional approaches?

0.0

Criterion 29

Justification

While Peru's National Action Plan (NAP) addresses the mercury problem from an environmental and health perspective, it does not delve into intersectional approaches that consider the specific vulnerabilities of gender, ethnicity, and social class. The plan focuses primarily on the technical and regulatory aspects of mercury reduction, with less emphasis on the social and cultural dimensions of the problem.

Sources

National Action Plan on Mercury: <https://minamataconvention.org/en/documents/national-implementation-plan-peru>

G. Monitoring Systems

Score: 0.62 / 1.00

Are there government-led monitoring systems for environmental and social impacts of ASM?

0.5

Criterion 30

Justification

On the one hand, the OEFA operates the Interactive Environmental Enforcement Portal (PIFA), which includes maps, information on entities subject to enforcement, monitoring of inspections, and statistics on enforcement actions in various sectors, including mining. It also publishes reports and specific actions related to the enforcement of regulations concerning small-scale and artisanal mining. However, these are more effective in large-scale and medium-scale mining. The Ministry of the Environment (MINAM) has the National Environmental Information System (SINIA), which centralizes environmental information (indicators, maps, statistics, publications, and technical guides) that can be used to assess environmental impacts related to artisanal and small-scale mining (land cover, water quality, mercury contamination, etc.). The Ministry of Energy and Mines (MINEM) is promoting the Interoperable System for Small-Scale and Artisanal Mining, a digital tool that will allow for real-time monitoring of the activities carried out by small producers and artisanal miners and aims to facilitate the exchange of information among all entities involved in the formalization of mining. Despite this, monitoring in artisanal and small-scale mining (ASM) is currently weak due to informality and a lack of resources. No evidence has been found of government-led social monitoring systems specifically for ASM.

Sources

Environmental Assessment and Enforcement Agency (OEFA): <https://pifa.oefa.gob.pe/mfiscamb/>
<https://www.gob.pe/es/i/6310321>

MINAM:

<https://sinia.minam.gob.pe/>

MINEM:

<https://www.gob.pe/es/n/1189646>

Is satellite or geospatial monitoring used to detect illegal or unlicensed ASM activities?

1.0

Criterion 31

Justification

Yes, it uses satellite and geospatial monitoring to detect unlicensed or illegal mining activities (including artisanal and small-scale mining). It does so continuously/near real-time through satellite alerts and then aggregates/analyzes that data into products on a monthly, quarterly, or annual basis, depending on the platform and report. MINAM, through SINIA and the Forest Program, uses Landsat and Sentinel imagery to generate early deforestation alerts (frequent visual verifications), enabling continuous detection of changes in forest cover linked to mining. OEFA, through its Interactive Environmental Enforcement Portal, publishes real-time monitoring maps and data and uses geospatial tools to support environmental enforcement. MINEM is implementing SIPMMA (Interoperable System for Small-Scale and Artisanal Mining), which will integrate administrative records with satellite imagery and GPS tracking for monitoring and traceability. On the other hand, through international cooperation, Peru collaborates with initiatives such as SERVIR / NASA and with independent platforms (RAMI, MAAP, ACCA) that provide real-time detection of mining and deforestation hotspots.

Sources

Gob.pe: <https://www.gob.pe/institucion/bosques/noticias/618957-crean-plataforma-para-monitorear-actividades-de-mineria-aurifera-en-nuestra-amazonia>

MINAM: <https://www.gob.pe/es/n/1162517>

PIFA: <https://sistemas.oefa.gob.pe/pifa/mfe/#/>

MINEM: <https://www.gob.pe/es/n/1189646>

NASA: <https://www.nasa.gov/missions/servir/teaming-up-to-track-illegal-amazon-gold-mines-in-peru/>

Can governmental satellite monitoring systems distinguish between artisanal, semi-mechanized, and mechanized mining activities?

0.5

Criterion 32

Justification

In Peru, authorities and projects (e.g., MINEM/MINAM together with SERVIR/NASA, MAAP, OEFA, and academic groups) integrate satellite alerts with verification to prioritize inspections. In practice, they typically use continuous/near-real-time detection to locate new disturbances and then differentiate their types using higher-resolution images and verification. Satellite monitoring systems can detect the presence of machinery and the scale of the operation, allowing inferences to be made about whether it is artisanal, semi-mechanized, or mechanized mining. However, it is not always possible to make this distinction accurately, especially in remote and difficult-to-access areas.

Sources

Monitoring: <https://alliancebioversityciat.org/publications-data/peruvian-authorities-are-using-gold-mining-monitoring-to-ol-early-detection>

<https://earthobservatory.nasa.gov/images/148439/finding-gold-mining-hotspots-in-peru>

Is mercury concentration measured by the government in potentially affected water bodies, the food chain and/or populations?

0.5

Criterion 33

Justification

Yes, the Peruvian government does conduct official mercury measurements at various points in the supply chain, although coverage is fragmented and the frequency varies. The Ministry of the Environment (MINAM) publishes inventories and studies on mercury stocks, emissions, and releases, providing information on mercury sources and levels in the country. The Environmental Assessment and Enforcement Agency (OEFA) conducts environmental monitoring of water, sediment, and soil in mining-affected areas and publishes field reports and analytical results (spot sampling related to inspections and campaigns). The Ministry of Health (MINSA) has conducted health assessments and biomedical sampling in exposed populations (blood/urine mercury levels, screenings) and disseminates public health recommendations. However, these measurements are not systematic or periodic, nor do they cover all areas affected by gold mining. The lack of a national mercury monitoring program hinders the assessment of the true impact of mercury contamination in the country.

Sources

Ministry of the Environment (MINAM): <https://www.gob.pe/minam>

https://minamataconvention.org/sites/default/files/2024-12/PER_3.3.pdf

OEFA: <https://repositorio.oefa.gob.pe/items/1ff997d2-a48d-41e5-ac3e-6c3b0c6fc285>

MINSA: <https://www.gob.pe/es/n/33068>

H. Public Participation

Score: 1.00 / 1.00

Are there legal channels for civil society oversight or participation in monitoring and enforcement?

1.0

Criterion 34

Justification

Yes, legal channels exist for civil society participation in environmental monitoring and oversight. In any impact study (EIA, semi-detailed EIA, etc.), processes for public information and participation must be opened (calls for participation, hearings, access to files). Furthermore, the OEFA (Environmental Assessment and Enforcement Agency) has the Regulations for Citizen Participation in Environmental Monitoring Actions, approved by Board Resolution No. 032-2014-OEFA/CD and subsequent amendments. The OEFA also operates the National Environmental Information and Complaints Service (SINADA) and the PIFA Portal, where citizens can file complaints, track their status, and access information on inspections. In addition, the General Environmental Law (Law No. 28611) recognizes the right of citizens to participate in environmental management.

Sources

General Environmental Law: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H901891>

Law of the National Environmental Impact Assessment System:

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H806054>

Regulations for Citizen Participation in Environmental Monitoring Actions by the Environmental Assessment and Enforcement Agency (OEFA): <https://www.gob.pe/es/l/215436>

Is there an official, accessible, safe, and functional channel for individuals or communities to file complaints related to ASGM activities or associated environmental impacts?

1.0

Criterion 35

Justification

Yes, there is an official, accessible, secure, and functional channel for filing environmental complaints in Peru: the National Environmental Information and Complaints Service (SINADA), administered by the Environmental Assessment and Enforcement Agency (OEFA). Through this portal, anyone can file a complaint about a suspected environmental violation. OEFA is obligated to investigate the complaints and take appropriate action.

Sources

OEFA: <https://sistemas.oefa.gob.pe/nsinada-denuncia/#/page/index>

Are there processes for public consultation with affected communities in mining-related decisions?

1.0

Criterion 36

Justification

Yes, Peru does have formal public consultation processes with communities when decisions (laws, regulations, plans, programs, or projects) may affect collective rights or the environment, but these processes vary depending on the type of community and the applicable law. For Indigenous or native peoples, there is the right to prior consultation, regulated by Law No. 29785 and its implementing regulations, Supreme Decree No. 001-2012-MC, which establishes the obligation to consult with Indigenous peoples about mining projects that may affect their collective rights. For projects subject to the Environmental Impact Assessment System (SEIA/EIA) (for example, many mining projects), Law 27446 requires citizen participation plans and public hearings at the various stages of the Environmental Impact Study; SENACE and the SEIA regulate and operate these mechanisms.

Sources

Law on the right to prior consultation of indigenous or native peoples, recognized in Convention 169 of the International Labour Organization (ILO): <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1039114>

Law No. 27446: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H806054>

Are civil society complaints taken into account in the authorization or assessment processes of mining projects?

1.0

Criterion 37

Justification

Yes, complaints and participation from civil society are considered in the evaluation and authorization processes for mining projects in Peru: legal mechanisms exist for receiving and registering public comments on Environmental Impact Assessments (EIAs) (SENACE/SEIA), and administrative channels (SINADA/OEFA) inform oversight and the prioritization of inspections. While channels exist for filing complaints, it is not always clear to what extent these complaints influence decision-making regarding the authorization of mining projects. The lack of transparency in this process hinders the evaluation of the real impact of citizen participation.

Sources

SENACE: https://www.senace.gob.pe/wp-content/uploads/2018/02/ABC-del-Senace_Ingles.pdf

OEFA: https://www.oecd.org/content/dam/oecd/en/publications/reports/2020/04/regulatory-enforcement-and-inspection-in-the-environmental-sector-of-peru_ee8ad76f/54253639-en.pdf

Do national programs on ASM include specific measures to support the participation of women, Indigenous peoples, or traditional communities?

1.0

Criterion 38

Justification

Yes, national programs on small-scale and artisanal mining (ASM) include measures to support the participation of women, Indigenous peoples, and communities. The Ministry of Energy and Mines (MINEM) approved a National Gender Plan for Small-Scale and Artisanal Mining (2023-2025) through Ministerial Resolution No. 524-2023-MINEM/DM, which incorporates awareness-raising measures, training, mainstreaming of a gender perspective in planning instruments, empowerment initiatives, and actions such as the "Magic Women" program and support for networks of women miners. Furthermore, the National Multisectoral Policy for Small-Scale and Artisanal Mining to 2030 (approved by Supreme Decree No. 016-2022-EM) mandates the coordination of actions among entities and the provision of territorial and intersectoral interventions that must consider local populations and social aspects. However, implementation is uneven, as coverage, budget, regional capacities, and inter-institutional coordination vary by region, and many measures depend on cooperation projects for their execution.

Sources

Gender Plan for Small-Scale and Artisanal Mining 2023-2025:

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1366333>

National Multisectoral Policy for Small-Scale and Artisanal Mining to 2030:

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1331293>

Are there protocols for the care and protection of victims and witnesses of crimes related to or derived from illegal mining? *0.5 may be given in cases there are general protection of witnesses and victims programs, but not specific for illegal mining

1.0

Criterion 39

Justification

In 2013, Law No. 30077 against Organized Crime included illegal mining as a crime eligible for investigation using special techniques (when three or more organized individuals are involved), allowing the use of mechanisms such as cooperating witnesses, lifting of bank secrecy, and enhanced witness protection in these proceedings.

In Madre de Dios, the Public Prosecutor's Office has multidisciplinary teams to assist women rescued from trafficking networks operating in brothels within mining camps, providing them with temporary shelter, therapy, and legal guidance. In 2016, the Public Prosecutor's Office approved a "Protocol for the Investigation of Illegal Mining Interdiction Cases," which details the procedure from the planning stage of the operation to the trial phase.

Additionally, in 2020-2021, the Public Prosecutor's Office developed a Protocol for the Care of Victims Rescued in Operations against Illegal Mining, focusing specifically on victims of human trafficking.

Sources

<https://www.rumbominero.com/peru/noticias/mineria/fiscalia-ya-cuenta-con-protocolo-para-la-indagacion-de-casos-de-mineria-ilegal/#:~:text=interdicci%C3%B3n%20de%20miner%C3%ADa%20ilegal%2C%20siendo,estas%20de%20programaci%C3%B3n%20e>

<https://img.lpderecho.pe/wp-content/uploads/2016/11/Resolucion-N%C2%BA-4269-2016-MP-FN-Protocolo-para-la-realizaci%C3%B3n-de-Operativos-de-Interdicci%C3%B3n-contra-la-Miner%C3%ADa-Ilegal.pdf>

Are there public programs to support formalization through incentives to and capacity-building of ASM gold miners?

1.0

Criterion 40

Justification

Yes, the Peruvian government has implemented programs to support the formalization of artisanal and small-scale mining (ASM). The Ministry of Energy and Mines (MINEM) maintains an official formalization program that includes training, technical assistance, and administrative support to help miners access the REINFO (National Registry of Informal Mining Operators) and complete their formalization process. MINEM has also promoted initiatives to facilitate access to credit and improved marketing channels for formalized miners (through announcements and pilot projects). Furthermore, the government announced the creation of a mining fund to support small-scale mining with financing at preferential rates, technical assistance, and marketing channels. The proposed new ASM Law also includes incentives for formalization.

Sources

Ministry of Energy and Mines (MINEM): <https://formalizacionminera.minem.gob.pe/>

Loans for miners: <https://www.gob.pe/es/n/827877>

Mining fund: <https://www.elperuano.pe/noticia/273760-peru-anuncia-un-fondo-privado-para-fomentar-la-formalizacion-de-la-pequena-mineria>

Are there accessible financing mechanisms promoted by the State to support sustainable practices as an alternative to unsustainable ASM gold mining?

0.0

Criterion 41

Justification

No evidence has been found of accessible, state-promoted financing mechanisms to support sustainable practices in artisanal and small-scale mining (ASM). Lack of access to credit is one of the main obstacles preventing small-scale miners from adopting clean technologies and improving their environmental practices.

Are safer mercury-free technologies promoted through incentives or support programs?

1.0

Criterion 42

Justification

Yes, the Peruvian government promotes the adoption of safer, mercury-free technologies, but it does so primarily through public and cooperative programs and projects (training, provision of gravimetric plants, technical assistance, and regulatory frameworks), rather than through a permanent government subsidy or a specific tax regime for these technologies. The National Implementation Plan for the Minamata Convention (Supreme Decree No. 004-2019-MINAM) mandates that public institutions implement measures to reduce and eliminate mercury use, including the promotion of alternative technologies. At the operational level, the planetGOLD Peru project (GEF/UNDP and national partners) was the main vehicle for introducing and disseminating mercury-free technologies: training, technical guides, and the provision and commissioning of gravimetric plants. The Ministry of Energy and Mines (MINEM) has signed technical cooperation agreements (Artisanal Gold Council) and has participated in the provision and promotion of clean technologies for artisanal and small-scale mining (ASM), in coordination with the Ministry of the Environment (MINAM) and partners.

Sources

National Implementation Plan for the Minamata Convention on Mercury
https://minamataconvention.org/sites/default/files/documents/national_implementation_plan/Peru_NIP_ES.pdf
PlanetGOLD: <https://www.planetgold.org/peru>
MINEM: <https://www.gob.pe/es/n/738018>

Are women, traditional communities and Indigenous peoples specifically included in sustainable ASM initiatives?

0.5

Criterion 43

Justification

Yes, women and Indigenous peoples are explicitly included in policies and plans; however, their effective benefit depends on implementation (resources, inter-institutional coordination, quality of consultation processes, and regional reach). The Ministry of Energy and Mines approved the National Gender Plan for Small-Scale and Artisanal Mining 2023–2025 (Ministerial Resolution No. 524-2023-MINEM/DM), which incorporates measures to promote the participation, training, and empowerment of women in small-scale and artisanal mining. Furthermore, the National Multisectoral Policy for Small-Scale and Artisanal Mining to 2030 (Supreme Decree No. 016-2022-EM) requires territorial and intersectoral approaches that consider local populations and coordination with competent authorities; in addition, the State must respect the right to prior consultation for measures that affect Indigenous peoples (Law No. 29785 / Convention 169). Nevertheless, the participation of these vulnerable groups remains a challenge.

Sources

Gender Plan for Small-Scale and Artisanal Mining 2023-2025:
<https://spij.minjus.gob.pe/spij-ext-web/#!/detallenorma/H1366333>
National Multisectoral Policy for Small-Scale and Artisanal Mining to 2030:
<https://www.gob.pe/institucion/minem/noticias/677625-minem-lanza-oficialmente-la-politica-nacional-multisectorial-par-a-la-pequena-mineria-y-mineria-artesanal>
<https://busquedas.elperuano.pe/dispositivo/NL/2128955-2>
PlanetGOLD: <https://www.planetgold.org/peru>

Are there governmental programs to collaborate with NGOs, academic institutions, or international agencies to promote sustainable ASM practices?

1.0

Criterion 44

Justification

Yes, the Peruvian government does promote and implement collaborative programs with NGOs, universities, and international agencies to foster sustainable practices in artisanal and small-scale mining (ASM), generally through pilot projects, agreements/MoUs, and technical assistance. The PlanetGOLD project is an example of this collaboration, implemented by the UNDP in partnership with the Ministry of the Environment (MINAM) and the Ministry of Energy and Mines (MINEM), to reduce/eliminate mercury use, introduce clean technologies (gravity sorting plants), provide training, and facilitate access to financing and markets in pilot regions. Furthermore, the government has signed memoranda of understanding and maintains collaborative relationships with international technical organizations and initiatives such as the Better Gold Initiative for training, traceability, and strengthening responsible value chains.

Sources

PlanetGOLD: <https://www.planetgold.org/peru>
Artisanal Gold Council:
<https://www.artisanalgold.org/blog/artisanal-gold-council-signs-mou-with-the-government-of-peru>
MINEM: <https://www.gob.pe/institucion/minem/noticias/23623-mem-y-la-iniciativa-oro-responsable-impulsan-una-pequena-mineria-competitiva-sostenible-y-articulada-con-los-mercados-globales>

Are there clear protection mechanisms for individuals working in areas of mining?

1.0

Criterion 45

Justification

The Occupational Safety and Health Regulations in Mining (Supreme Decree No. 055-2010) establish obligations for the protection of mine workers. However, in informal and illegal artisanal and small-scale mining (ASM), problems of labor exploitation, child labor, and unsafe working conditions persist.

Sources

Supreme Decree No. 055-2010: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1014444>

Is there recognition or promotion of international certification schemes by the government?

0.0

Criterion 46

Justification

The Peruvian government does not officially recognize or promote international certification schemes such as Fairmined or CRAFT in its regulations. Their promotion in the country comes primarily from NGOs, international cooperation agencies, and the market itself.

Sources

Fairmined: <https://www.cooperacionsuiza.pe/21-de-febrero-de-2018/>

Is there a government incentive for the adoption of gold certification?

0.0

Criterion 47

Justification

The Ministry of Energy and Mines' (MINEM) National Multisectoral MAPE 2030 Policy highlights that formalization will provide, among other benefits, access to financing, clean technologies, and the "certification and proper traceability" of production. Furthermore, a national seal, "Formal Gold, Peruvian Gold," was created to incentivize the purchase of formalized gold, through Legislative Decree No. 1336. However, there are no official regulations that grant exclusive economic or regulatory benefits for adopting international certifications. The proposed new MAPE Law includes incentives for formalization, but it does not specify whether it will include incentives for certification.

Sources

Mining Outlook: <https://www.rumbominero.com/peru/noticias/mineria/nueva-ley-mape-medidas-clave-que-el-ejecutivo-presentaria-a-la-comision-de-energia-y-minas/>

Legislative Decree establishing provisions for the comprehensive mining formalization process:

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1171584>

National Multisectoral Policy for Small-Scale and Artisanal Mining to 2030:

<https://www.gob.pe/institucion/minem/noticias/677625-minem-lanza-oficialmente-la-politica-nacional-multisectorial-par-a-la-pequena-mineria-y-mineria-artesanal>

<https://busquedas.elperuano.pe/dispositivo/NL/2128955-2>

J. Remediation and Biodiversity Strategy Integration

Score: 0.50 / 1.00

Is ASM gold mining recognized in the country's National Biodiversity Strategy and Action Plan (NBSAP)?

Justification

Yes, the National Biodiversity Strategy to 2021 and its 2014-2018 Action Plan recognize mining as one of the main pressures on biodiversity in Peru. This shows that artisanal and small-scale mining (ASM), insofar as it is linked to illegal mining, is recognized within the National Biodiversity Strategy as a significant pressure on the country's biodiversity.

Sources

Ministry of the Environment (MINAM): <https://www.gob.pe/institucion/minam/informes-publicaciones/329635-estrategia-nacional-de-diversidad-biologica-al-2021-y-su-plan-de-accion-2014-2018>

National Biodiversity Strategy to 2021 and its 2014-2018 Action Plan Approved
<https://www.minam.gob.pe/wp-content/uploads/2014/11/EPANDB-2014-20181.pdf>

Does the country have specific programs, targets, or funding mechanisms for ecosystem restoration in areas affected by ASM gold mining?

Justification

While some programs and projects exist for the restoration of areas degraded by mining, these are insufficient to address the magnitude of the problem. There is no national restoration program with specific goals and funding for artisanal and small-scale mining (ASM). However, indirectly, instruments such as the National Biodiversity Strategy to 2021 and its 2014-2018 Action Plan, as well as Supreme Decree No. 040-2014-EM, establish that holders of mining activities are responsible for preventing, mitigating, recovering, and rehabilitating the environmental impacts they generate.

Sources

N/A

Supreme Decree No. 040-2014-EM

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1115050>

Approving the National Biodiversity Strategy to 2021 and its Action Plan 2014-2018
<https://www.minam.gob.pe/wp-content/uploads/2014/11/EPANDB-2014-20181.pdf>

Are there requirements or guidance for restoration, remediation, or compensation for degraded areas?

Justification

Yes, in Peru there are regulations that require mining operators to assume environmental responsibility, including the restoration, remediation, or compensation of degraded areas. Law No. 27446 (the Environmental Impact Assessment System Law) requires that projects include measures for the prevention, mitigation, correction, or compensation of environmental impacts. Supreme Decree No. 040-2014-EM, in Article 16, establishes that the mining operator is responsible for the impacts at all stages of the project and must adopt measures for prevention, rehabilitation, and closure. Supreme Decree No. 045-2006-EM contains general provisions on environmental management in mine closure. However, these obligations are broad in scope and lack specific technical criteria; therefore, the existing guidelines are minimal and general.

Sources

Ministry of Energy and Mines (MINEM): <https://www.gob.pe/minem>

Law 27446

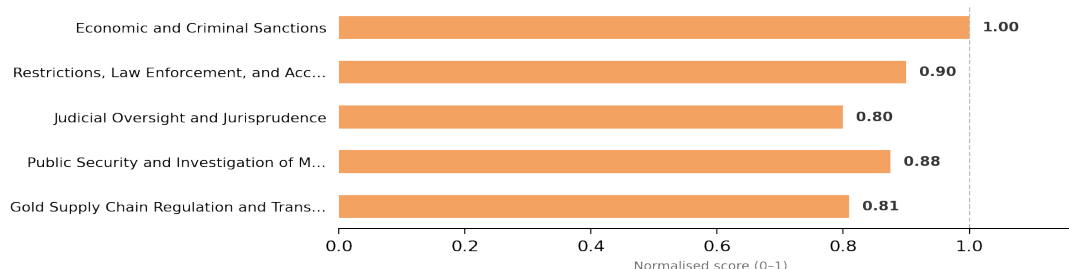
<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H806054>

Supreme Decree No. 040-2014-EM
<https://spij.minjus.gob.pe/spij-ext-web/#!/detallenorma/H1115050>
Supreme Decree No. 045-2006-EM
<https://spij.minjus.gob.pe/spij-ext-web/#!/detallenorma/H923482>

III. Investigation and enforcement

4.39 / 5.00

Category scores



K. Gold Supply Chain Regulation and Transparency

Score: 0.81 / 1.00

Does the country require formal registration of all actors in the ASM gold supply chain (miners, traders, and exporters)?

1.0

Criterion 51

Justification

Yes, Peru requires the formal registration of all actors in the gold supply chain. In the case of Artisanal and Small-Scale Mining (ASM), producers must register in the Comprehensive Mining Formalization Registry (REINFO) for the duration of their formalization process, in accordance with Supreme Decree No. 1000-2016-2017. No. 018-2017-EM and Law No. 31007. Once this process is completed, they are transferred to the Registry of Artisanal and Small-Scale Mining Producers, regulated by Law No. 27651 and its regulations (Supreme Decree No. 013-2002-EM). In the case of medium and large miners, they do not enter the REINFO, but rather require a mining concession granted by INGEMMET or the Regional Directorates of Energy and Mines, according to the Consolidated Text of the General Mining Law (Supreme Decree No. 014-92-EM), in addition to having an approved EIA and the authorization to start operations granted by the MINEM. For their part, gold traders and processors must be registered in the Registry of Gold Traders and Processors (RECPO) created by Supreme Decree No. No. 012-2012-EM, a mandatory requirement for buying, selling, or stockpiling minerals of legal origin. Finally, gold exporters must be registered in the Single Taxpayer Registry (RUC) of SUNAT, complying with the provisions of the General Customs Law (Legislative Decree No. 1053), which requires proof of traceability and legal origin of gold for export.

Sources

REINFO: <https://www.gob.pe/867-buscar-en-el-registro-integral-de-formalizacion-minera-reinfo>

RECPO: <https://www.datosabiertos.gob.pe/dataset/registro-especial-de-comercializadores-y-procesadores-de-oro>

D.S. 018-2017-EM: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1181740>

Law 31007: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1246102>

Law 27651: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H820249>

D.S. 013-2002-EM: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H824582>

D.S. 014-92-EM: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H754834>

D.S. 012-2012-EM: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1054720>

D.L. 1053: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H967619>

Are there specific permits or procedures required for exporting ASM gold?

1.0

Criterion 52

Justification

Yes. In Peru, the export of gold from Artisanal and Small-Scale Mining (ASM) is subject to specific permits and procedures that ensure its formality and traceability: Producer Formality: The gold must come from miners registered in the Comprehensive Registry of Mining Formalization (REINFO), according to Supreme Decree No. 018-2017-EM (Articles 1 and 2), or from those who have completed the process and are listed in the Administrative Registries of Artisanal and Small-Scale Mining Producers, created by the Regulations of Law No. 27651 (Supreme Decree No. 013-2002-EM, Articles 4 and 11). Authorized Marketing: Sales can only be made through individuals or legal entities registered in the Special Registry of Gold Traders and Processors (RECPO/RCMPM), in accordance with Supreme Decree No. 013-2002-EM. No. 027-2012-EM (Art. 4.1). Export: Exports are processed through the Customs Declaration of Goods (DAM) in the Single Window for Foreign Trade (VUCE). Crime Prevention and Traceability: Gold traders and exporters are considered obligated parties under Law No. 27693 (Financial Intelligence Unit - Peru, Art. 8), which requires them to prove the legal origin of the mineral. Art. 9 of the same law imposes specific obligations on them: to identify and verify clients, maintain documentation, and report suspicious transactions to the Financial Intelligence Unit (UIF).

Sources

Export guide: https://www.cooperacionsuiza.pe/wp-content/uploads/2019/06/guia_para_exportacion.pdf

D.S. 018-2017-EM: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1181740>

Law 27651: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H820249>

D.S. 013-2002-EM: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H824582>

D.S. 027-2012-EM: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1059507>

Law 27693: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H824112>

Are files on ASM areas, including titles, licenses, embargoes, and monitored zones, available in open, updated formats compatible with geospatial analysis systems?

1.0

Criterion 53

Justification

Yes, INGEMMET maintains the national mining registry with updated geospatial information that is publicly accessible through GEOCATMIN. REINFO also provides updated information on mining formalization areas in formats compatible with geospatial analysis. SENACE, MINEM, and platforms such as GeoBosques (SERFOR) make relevant data available that complement the traceability and monitoring of these areas.

However, certain specific information, such as liens or encumbrances (SUNARP), or some environmental management instruments, is often published in closed formats (PDF or direct queries), which partially limits its automatic integration into geospatial analysis systems.

Sources

GEOCATMIN: <https://geocatmin.ingemmet.gob.pe/geocatmin/>

REINFO: <https://www.gob.pe/867-buscar-en-el-registro-integral-de-formalizacion-minera-reinfo>

GEOBOSQUES: <https://geobosques.minam.gob.pe/geobosque/view/index.php>

Is there a strategy in place to ensure the traceability of gold from extraction to final sale?

0.5

Criterion 54

Justification

In Peru, several registries regulate actors in the gold supply chain, such as the Comprehensive Registry of Mining Formalization (REINFO) for artisanal and small-scale miners, the Special Registry of Gold Traders and Processors

(RECPO/RCMPM) for those who acquire and process the mineral, and the Single Taxpayer Registry (RUC) of SUNAT (the Peruvian tax authority) for exporters. These instruments allow for the identification of authorized entities and verification that operations are conducted formally, but they do not, in themselves, constitute a traceability mechanism, as they do not allow for continuous tracking of the gold's journey from the mine to the market. A true traceability mechanism is currently in a pilot phase in Pataz (La Libertad region), using the digital application QORI, created by Emergency Decree No. 006-2025. This system requires traders to register each gold transaction, generating a history that tracks the mineral from its extraction to its final destination. Although it represents a significant step towards effective traceability, it has not yet been implemented nationwide and faces interoperability and control challenges. In conclusion, the Peruvian regulatory framework ensures formality through mandatory registrations, but the only real traceability mechanism is QORI, whose expansion and strengthening will be key to guaranteeing comprehensive gold tracking and reducing the risks of illegal trade.

Sources

QORI: <https://www.rumbominero.com/peru/noticias/mineria/qori-implementan-aplicativo-para-trazabilidad-obligatoria-de-oro-en-pataz/>

D.U. 006-2025: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1404173>

Is disclosure of transactions between miners, traders, and exporters mandatory?

1.0

Criterion 55

Justification

In Peru, there is no general obligation to publicly disclose transactions between gold miners, traders, and exporters. What the regulations establish are registration and reporting mechanisms directed to the competent authorities, to which access is restricted. For example, traders and processors registered with the RECPO/RCMPM must keep a record of their operations and report periodically to the Ministry of Energy and Mines (MINEM), while exporters are required to declare their shipments through the Customs Declaration of Goods (DAM) and the Single Window for Foreign Trade (VUCE), under the supervision of the National Superintendency of Tax Administration (SUNAT) and the Customs Administration. Likewise, within the framework of money laundering prevention, Law No. 27693 considers traders and exporters of precious metals as obligated parties, imposing the duty to identify clients, maintain documentation, and report suspicious transactions to the Financial Intelligence Unit (UIF-Peru). More recently, the Emergency Decree... Decree No. 006-2025 has implemented a pilot system of mandatory digital traceability in Pataz through the QORI application, which allows for the real-time recording of transactions for auditing purposes. In conclusion, while transactions must be recorded and reported, this information is not publicly disclosed in open formats. The data remains under the control of state entities such as the Ministry of Energy and Mines (MINEM), the National Superintendency of Tax Administration (SUNAT), and the Financial Intelligence Unit (UIF), meaning that gold traceability is an administrative and fiscal process, rather than an exercise in public transparency.

Sources

SBS: <https://www.sbs.gob.pe/boletin/detalleboletin/idbulletin/2357>

D.U. 006-2025: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1404173>

Law 27693: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H824112>

Does the legal framework require financial institutions to verify the legal provenance of gold-related transactions?

1.0

Criterion 56

Justification

In Peru, financial institutions are required to apply due diligence measures to gold-related transactions, and good faith regarding the origin of the gold is not automatically presumed. Law No. 27693, which created the Financial Intelligence Unit (UIF-Peru), includes financial institutions and precious metal traders and exporters as obligated parties, imposing on them the responsibility to identify their clients, verify information, maintain transaction records, and report any suspicious transactions. Additionally, the Superintendency of Banking, Insurance, and Private Pension Fund

Administrators (SBS), through Resolution No. 2660-2015, requires supervised entities to implement Know Your Customer (KYC) policies and enhanced due diligence in transactions considered high-risk, including those related to gold trading. In practice, this means that banks must evaluate and document gold-related transactions and immediately report any indication of irregularity to the Financial Intelligence Unit (UIF). In conclusion, Peruvian regulations establish that the financial traceability of gold depends on compliance with these control and verification mechanisms, which strengthens the transparency of operations and reduces the risk of illegally sourced gold entering the formal financial system.

Sources

SBS: <https://www.sbs.gob.pe/boletin/detalleboletin/idbulletin/2357>

Law 27693: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H824112>

SBS Resolution 2060-2015: https://www.sbs.gob.pe/Portals/0/er/Auto_Nuevas_Empresas/Normas_Comunes/7.%20Reg.%20Gesti%C3%B3n%20de%20Riesgos%20de%20Lavado%20de%20Activos_Res.%20SBS%20N%C2%B0%202660-2015.pdf

Is there a centralized digital/electronic registry for gold supply chain transactions accessible to regulatory authorities and civil society?

0.5

Criterion 57

Justification

Partial registration exists through the RECPO and the QORI application, but there is no comprehensive, centralized digital record of all transactions in the gold supply chain. Information is available to regulatory authorities, but access for civil society is limited due to confidentiality concerns.

Sources

RECPO: <https://www.datosabiertos.gob.pe/dataset/registro-especial-de-comercializadores-y-procesadores-de-oro>

Are there protocols for information sharing and joint enforcement with neighboring countries?

0.5

Criterion 58

Justification

There are some police and judicial cooperation protocols with neighboring countries, especially Brazil and Colombia, to combat cross-border crimes, including illegal mining. However, these protocols are not specific to artisanal and small-scale mining (ASM), and their effectiveness in practice is limited due to differences in national legal frameworks.

Sources

International police cooperation: <https://www.interpol.int/es/Quienes-somos/Paises-miembros/Las-Américas/PERU>

L. Public Security and Investigation of Mining-Related Crimes

Score: 0.88 / 1.00

Do public security bodies have specific strategies in place for safeguarding Indigenous and traditional communities against crimes related to mining in their territories?

0.5

Criterion 59

Justification

There are some strategies and legal frameworks for the protection of Indigenous communities, such as Law No. 28736, which establishes special protection for peoples living in isolation. However, practical implementation is

deficient, and Indigenous communities continue to face threats, violence, and criminalization when they defend their territories against illegal mining.

Sources

Law No. 28736: <https://spij.minjus.gob.pe/spij-ext-web/#!/detallenorma/H917090>

Are there specialized police and prosecutor units for environmental crimes or illegal mining with effective coverage in critical areas?

1.0

Criterion 60

Justification

In Peru, both the National Police and the Public Prosecutor's Office have specialized units to address environmental crimes and those related to illegal mining. The Peruvian National Police, through its Environmental Directorate (DIRMEAMB) and other divisions specializing in illegal mining, conducts operations to monitor, interdict, and protect natural resources in various regions of the country. Meanwhile, the Public Prosecutor's Office, through its Specialized Environmental Prosecutor's Office, investigates and prosecutes crimes related to illegal mining and environmental pollution, with specialized prosecutors in critical regions to coordinate joint actions with the police and other authorities.

Sources

Legislative Decree No. 1100: <https://spij.minjus.gob.pe/spij-ext-web/#!/detallenorma/H1049650>

Is there a clear procedure for investigating crimes related to mining?

1.0

Criterion 61

Justification

Yes, there are established procedures for investigating mining-related crimes. The Penal Code criminalizes illegal mining and establishes the corresponding investigative procedures, while Legislative Decree No. 1100 defines the framework for the interdiction and control of illegal mining. In practice, the Specialized Environmental Prosecutor's Office leads criminal investigations, coordinating with the National Police and other authorities as needed. Entities such as the Ministry of Energy and Mines (MINEM), the National Superintendency of Labor Inspection (SUNAFIL), and the National Water Authority (ANA) participate by providing technical and administrative support, conducting inspections, audits, and expert analyses that serve as evidence to support legal actions. Thus, the procedure combines a clear legal framework with inter-institutional coordination adapted to the complexity of illegal mining.

Sources

Legislative Decree No. 1100: <https://spij.minjus.gob.pe/spij-ext-web/#!/detallenorma/H1049650>

Penal Code: https://www.minam.gob.pe/wp-content/uploads/2017/09/T%C3%ADtulo-XIII-del-C%C3%B3digo-Penal_-Delitos-Ambientales.pdf

Does the country have bilateral or multilateral protocols or agreements in place to coordinate joint police operations for the enforcement of environmental and mining laws?

1.0

Criterion 62

Justification

Peru has a broad network of bilateral and multilateral agreements to combat illegal mining and environmental crimes. It is a signatory to the Amazon Cooperation Treaty and an active member of the Andean Community, within which framework it participates in the Andean Policy against Illegal Mining (Decision 774, 2012). At the bilateral level, it maintains the Cobija Protocol (2018) with Bolivia to conduct joint mining interdiction operations in border areas, as well as agreements with Brazil (Action Plan 2009) and Colombia (Binational Cabinets) that include cooperation on environmental security. Institutionally, Peru's Commissioner for the Formalization and Oversight of Illegal Mining

maintains direct coordination with its Bolivian and Brazilian counterparts. The Environmental Prosecutor's Office, the National Police, and the Customs Superintendency collaborate with their counterparts in neighboring countries through information exchanges and joint operations.

Sources

Cobija Protocol (2018); CAN Decision 774; ACTO (Bogotá Declaration, 2025); INTERPOL (Green Shield, 2025).

M. Judicial Oversight and Jurisprudence

Score: 0.80 / 1.00

Have courts issued binding decisions related to illegal gold mining or its socio-environmental impacts in the last five years?

1.0

Criterion 63

Justification

In Peru, several binding decisions related to illegal gold mining and its socio-environmental impacts have been issued in recent years.

In 2025, the Constitutional Court issued a ruling clarifying that miners registered in the Comprehensive Registry of Mining Formalization (REINFO) cannot use this registration as a shield against criminal proceedings for environmental crimes. This decision had a significant impact, as it reinforced the idea that formalization does not equate to impunity for socio-environmental damage.

A landmark case in which the Public Prosecutor's Office acted against the socio-environmental impacts of illegal gold mining occurred in April 2023 in the Puno region. The Specialized Environmental Prosecutor's Office obtained a conviction against Adrián Víctor Mamani Mamani, who was illegally extracting gold in the district of Ananea, province of San Antonio de Putina. The investigations confirmed that the accused was operating without authorization, using heavy machinery, chutes, and motors that caused pollution in the Ramis River basin, as well as the destruction of grasslands and wetlands in the high Andean prairie. The Judiciary handed down a suspended sentence of three years and ten months in prison for the crimes of pollution and environmental damage.

Sources

Constitutional Court: https://rpp.pe/campanas/contenido-patrocinado/reinfo-tribunal-constitucional-advierte-que-proceso-de-formalizacion-no-puede-ser-escudo-legal-para-infracciones-noticia-1632939?utm_source=chatgpt.com#google_vignette

Public Prosecutor's Office: https://www.gob.pe/institucion/mpfn/noticias/748901-fiscalia-ambiental-de-puno-logra-sentencia-condenatoria-para-minero-ilegal-de-oro-en-distrito-de-ananea?utm_source=chatgpt.com

Have judicial decisions or jurisprudence recognizing natural ecosystems as subjects of rights generated legal restrictions, obligations, or the imposition of sanctions in legal cases related to mining activities?

1.0

Criterion 64

Justification

Judicial and regulatory decisions recognizing ecosystems as subjects of rights have begun to pave a new path in socio-environmental protection against extractive activities. While a consolidated framework is not yet in place, some rulings and ordinances have set important precedents. The most emblematic case is that of the Marañón River, declared a subject of rights by the Nauta Court in 2024, which ordered the State and Petroperú to implement immediate actions to stop pollution from oil spills. At the local level, ordinances have been approved in Puno recognizing rivers, lakes, and springs as rights holders, although with limited effects. Furthermore, in 2025, a lawsuit

was filed to grant Lake Titicaca the same protection, a process that is still underway. These advances show that, although important steps have been taken, the judicial recognition of nature in Peru remains incipient and in the process of consolidation.

Sources

Marañón River: https://www.pucp.edu.pe/climadecambios/noticias/sentencia-emblematica-el-rio-maranon-es-declarado-titular-de-derecho/?utm_source=chatgpt.com

Lake Titicaca: https://www.business-humanrights.org/en/latest-news/per%C3%BA-presentan-demanda-para-que-se-ordene-la-implementaci%C3%B3n-de-medidas-que-reconozcan-al-lago-titicaca-como-sujeto-de-derechos/?utm_source=chatgpt.com

Can individuals or communities file collective environmental actions or constitutional remedies in mining-related cases?

1.0

Criterion 65

Justification

Yes, collective action mechanisms and constitutional remedies exist in Peru that allow communities and citizens to defend themselves against the environmental impacts of mining. The most relevant are the amparo action, the popular action, and the compliance action, in addition to the possibility for communities to act directly to claim fundamental rights such as health, water, and a healthy environment.

Sources

Political Constitution of Peru: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H6826788>

General Environmental Law: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H901891>

Is judicial action allowed in defense of diffuse environmental interests (such as ecosystem protection or public health) without the need to demonstrate individual harm?

1.0

Criterion 66

Justification

Yes, in Peru, the Constitution (Art. 200) and the General Environmental Law (Law No. 28611, Art. 143) recognize that any person may file legal actions to defend the right to a healthy environment, even in cases involving collective interests. This means that it is not necessary to demonstrate specific individual harm, since environmental protection is understood as a collective good whose safeguarding is the responsibility of all of society. Thus, the possibility of taking legal action against environmental threats or damage is opened without requiring proof of personal harm.

Sources

Political Constitution of Peru: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H682678>

General Environmental Law: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H901891>

Is there an interstate coordination mechanism for the investigation and prosecution of transboundary environmental crimes related to mining?

0.0

Criterion 67

Justification

Peru lacks a single, systematic interstate coordination mechanism for the investigation and prosecution of transboundary environmental crimes related to mining. However, regional cooperation frameworks do exist, providing a foundation for collaboration. Peru is a member of the Amazon Cooperation Treaty Organization (ACTO) and the Leticia Pact for the Amazon, which promote information sharing and joint actions against environmental crimes. Furthermore, bilateral agreements on judicial and police cooperation exist with neighboring countries, allowing for

mutual assistance in investigations. Despite this, practical application is often limited and fragmented, resulting in the absence of a specific operational protocol for cases of transboundary illegal mining.

Sources

Leticia Pact: <https://www.cancilleria.gob.co/pacto-leticia-amazonia>

ACTO: <https://otca.org/quienes-somos/>

N. Restrictions, Law Enforcement, and Accountability

Score: 0.90 / 1.00

Does the government enforce compliance of regulations related to illegal ASM, including through sanctions for environmental damages and non-compliance?

0.5

Criterion 68

Justification

The government is conducting interdiction operations against illegal mining, especially in Madre de Dios and other critical areas. In practice, the enforcement of these regulations is primarily reflected in interdiction operations and police actions in the field, coordinated between the Peruvian National Police (PNP), the Public Prosecutor's Office, and specialized agencies such as the General Directorate of Mining Formalization of the Ministry of Energy and Mines (MINEM) and the Specialized Environmental Prosecutor's Office (FEMA).

Sources

Operations in Madre de Dios: https://especial.larepublica.pe/la-republica-sostenible/2023/08/07/estado-combate-mine-ria-ilegal-en-madre-de-dios-114198?utm_source=chatgpt.com

Can licenses be suspended or revoked in cases of environmental law violations or social violations?

1.0

Criterion 69

Justification

Yes, mining licenses and concessions can be suspended or revoked in cases of environmental or social violations. The Environmental Assessment and Enforcement Agency (OEFA) is the entity responsible for monitoring and penalizing environmental infractions in the mining sector. Sanctions can include fines, the suspension of activities, and the revocation of the environmental license. Yes, mining activities can be suspended in cases of environmental or social violations, but it is important to clarify that this applies to environmental permits or authorizations (such as EIA, DIA, or IGAFOM) and not to the mining right itself. The Environmental Assessment and Enforcement Agency (OEFA) is the entity responsible for monitoring and penalizing environmental infractions in the mining sector. Its sanctions can include fines, the temporary suspension of activities, and the revocation of the environmental authorization, which prevents operation for the duration of the measure. However, the mining license or concession to explore and exploit (the mining right) is not suspended or revoked for environmental or social non-compliance, except for the causes expressly indicated in the General Mining Law.

Sources

Environmental Assessment and Enforcement Agency (OEFA): <https://www.gob.pe/oefa>

Law 29325

<https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H982536>

**Are there specific sanctions or criminal categories related to damage caused by mercury?
*0.5 may be given in cases where there is general sanctions on waste disposal and environmental harm, but none directly related to mercury.**

1.0

Criterion 70

Justification

The Peruvian Penal Code includes an entire section dedicated to environmental crimes (Title XIII, Articles 304 to 314, in addition to subsequent amendments regarding mining). Article 304, on “Environmental Pollution,” criminalizes the dumping or release of pollutants in violation of regulations or at levels exceeding permitted limits, when this causes or may cause serious harm to the environment or human health.

Furthermore, Peru specifically addresses the use of mercury in the context of illegal mining. In 2012, the country amended its Penal Code to incorporate Articles 307-A to 307-F, which define crimes related to illegal mining and the use of associated inputs. Article 307-A, Illegal Mining, establishes as a crime the exploration, extraction, or exploitation of minerals without authorization when this activity causes or may cause environmental damage or poses a risk to public health.

Sources

Penal Code of Peru

Is there any legal obligation to adopt rehabilitation and/or compensation measures where environmental damage has been found?

1.0

Criterion 71

Justification

Yes. Peruvian law establishes the obligation to rehabilitate or compensate when environmental damage is proven. The General Environmental Law (Law No. 28611, art. 142) stipulates that anyone responsible for environmental damage has the obligation to repair it, which includes rehabilitation measures or, when this is not possible, compensation. Likewise, the OEFA, pursuant to Law No. 29325, art. 22, may impose corrective measures to guarantee the restoration or compensation of the damage.

Sources

General Environmental Law: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H901891>

Law 29325: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H982536>

Can sanctions be applied based on remote evidence (e.g., satellite images)?

1.0

Criterion 72

Justification

Yes. In Peru, illegal gold mining (illegal AGM) is classified in the Penal Code (articles 307-A to 307-D) as an environmental crime, punishable by imprisonment, confiscation of assets, and other penalties for those who carry out activities without authorization or in prohibited areas. In addition, Legislative Decree No. 1100 regulates the interdiction of illegal mining and empowers authorities to destroy machinery, supplies, and camps used in this activity. Thus, there is a clear legal framework that establishes criminal penalties and administrative measures against illegal AGM.

Sources

Legislative Decree No. 1100: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1049650>

Penal Code: https://www.minam.gob.pe/wp-content/uploads/2017/09/T%C3%ADtulo-XIII-del-C%C3%B3digo-Penal_-Delitos-Ambientales.pdf

Are there clear legal sanctions for environmental crimes related to ASM?

1.0

Criterion 73

Justification

Yes. Criminal networks linked to the illegal gold trade are subject to oversight and prosecution. The Peruvian National Police (PNP) and the Public Prosecutor's Office, through the Specialized Environmental Prosecutor's Office (FEMA) and the Organized Crime Prosecutor's Office, are conducting investigations against organizations that finance, transport, or trade illegal gold. Law No. 30077, the Law Against Organized Crime, recognizes illegal mining as an activity inherent to organized crime, allowing for the application of special investigative techniques and more severe penalties. Furthermore, Legislative Decree No. 1244 strengthens the fight against money laundering derived from this activity, granting greater powers to entities such as SUNAT (the Peruvian tax authority) and the Financial Intelligence Unit (UIF-Peru) to monitor suspicious transactions in the gold trade. Similarly, the regulations governing the UIF-Peru (Law No. 27693 and amendments) require gold trading companies to report suspicious transactions, which allows for the tracking and sanctioning of companies that serve as a front for criminal networks.

Sources

Law 30077: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1084545>

Legislative Decree 1244: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1166739>

Law 27693: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H824112>

Are criminal networks involved in illegal gold trade targeted by enforcement agencies?

1.0

Criterion 74

Justification

Yes. In Peru, companies and individuals who trade gold from illegal mining can face financial penalties. The Penal Code (articles 307-A to 307-F) establishes fines and the confiscation of assets related to the illicit activity. Furthermore, Legislative Decree No. 1100 empowers authorities to impose administrative measures, such as the seizure of machinery, supplies, and mining products, including gold, when illegal trade is detected. These sanctions aim to discourage participation in illicit trade chains and strengthen environmental and mining oversight.

Sources

Legislative Decree No. 1100: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H1049650>

Penal Code: https://www.minam.gob.pe/wp-content/uploads/2017/09/T%C3%ADtulo-XIII-del-C%C3%B3digo-Penal_-Delitos-Ambientales.pdf

Are economic sanctions applied to companies or individuals trading in illicit gold?

1.0

Criterion 75

Justification

In Peru, environmental and mining authorities can impose administrative sanctions independently of criminal proceedings. The Environmental Assessment and Enforcement Agency (OEFA), under Article 17 of Law No. 29325, is empowered to impose fines and order corrective measures for environmental violations. Likewise, the Ministry of Energy and Mines (MINEM), according to Article 101 of the General Mining Law (Supreme Decree No. 014-92-EM), can impose fines for breaches of legal, contractual, or regulatory obligations. These administrative sanctions allow for the immediate prevention and remediation of damages, complementing criminal actions aimed at establishing the criminal liability of offenders.

Sources

Law 29325: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H982536>

D.S. 014-92-EM: <https://spij.minjus.gob.pe/spij-ext-web/#/detallenorma/H754834>

Can environmental and mining authorities impose sanctions independently of a criminal process (administrative sanctions)?

1.0

Criterion 76

Justification

In Peru, administrative and, in certain cases, criminal sanctions can be based on remote evidence, such as satellite imagery, drone footage, or aerial photographs. The Environmental Assessment and Enforcement Agency (OEFA) uses these tools to identify illegal mining or deforestation and can impose corrective measures and fines without requiring immediate physical presence. Similarly, the Ministry of Energy and Mines (MINEM) can base the suspension or cancellation of mining concessions on remote evidence. This type of evidence allows for efficient action in hard-to-reach areas and provides legal support for sanctions.

Sources

RAMI: <https://www.gob.pe/institucion/bosques/noticias/618957-crean-plataforma-para-monitorear-actividades-de-mineria-a-aurifera-en-nuestra-amazonia>

Amazon Mining Policy Scoreboard

Led by Amazon Conservation Association · amazonconservation.org

In collaboration with: Pulitzer Center · Rainforest Investigations Network · Earth Genome